

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG PC DLNFT

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JESS
LYNN RHODES, MA, LPC, LICENSE NO. 1018

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the State Board of
Licensed Professional Counselor Examiners ("Board") and Jess L. Rhodes, MA., LPC
("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this Stipulation and Order.

2. The Board granted respondent a license to practice as a Licensed Professional Counselor in Colorado on August 26, 1994. Respondent was issued license number 1018. Respondent has been so licensed since that date.

3. On or about March 17, 2000 the Board received a complaint against respondent alleging practice below generally accepted standards of practice and performing services outside respondents area of training, experience, or competence in violation of the Colorado Mental Health Statute.

4. Following investigation of the complaint and investigative report, the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for initiation of disciplinary action regarding respondent's license to practice professional counseling.

5. Respondent understands that he has the right to a hearing with respect to the complaint filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this Stipulation and Order, he waives his right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine

witnesses. Respondent understands that he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this Stipulation and Order, he waives his right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent agrees that he freely and voluntarily enters into this Stipulation and Order, which includes ceasing the practice of hypnosis involving long-term memory retrieval.

7. Respondent admits and agrees as follows:

a. Respondent entered into a professional therapeutic relationship with client PD to provide PD with professional counseling service as defined in C.R.S. 12-43-601 (5).

b. The Board could establish a prima facie case of a violation of the Colorado Mental Health Act and respondent could introduce evidence in rebuttal and mitigation of the Board's case. The parties wish to avoid the time and expense of litigating this matter and therefore agree to this Stipulation and Order.

c. Respondent will strictly observe the prohibitions set forth in C.R.S. § 12-43-222(1) and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

d. The Board, by this Stipulation and Order hereby orders that respondent shall cease his hypnosis practice involving long-term memory retrieval.

e. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing hypnosis services to clients which include long-term memory retrieval.

8. All time periods and obligations provided in this order run only while respondent is engaged in the practice of professional counseling in Colorado. They are tolled and suspended at all other times.

9. If respondent discontinues the practice of professional counseling in Colorado, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date he ceased practicing and his new address if he has moved.

10. In the event respondent subsequently resumes his practice of professional counseling in Colorado, he shall notify the Board in writing prior to resuming the practice of professional counseling in Colorado. Such notification shall include his address, and the date on which he intends to resume practice.

11. As used in this stipulation and order, the terms "professional counseling practice", "professional counseling services", "practice of professional counseling", and "professional counseling" have the same meaning as the term "professional counseling" as defined in C.R.S. §12-43-601(5).

12. Respondent enters into this Stipulation and Order voluntarily, without coercion, and after being fully advised both as to his right to a hearing and as to the consequences of this Stipulation and Order.

13. No agreement, understanding, representation, or interpretation not contained in this Stipulation and Order may be used to vary or to contradict its terms.

14. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

15. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

16. This Stipulation and Order shall take effect on acceptance and signature by the Board.

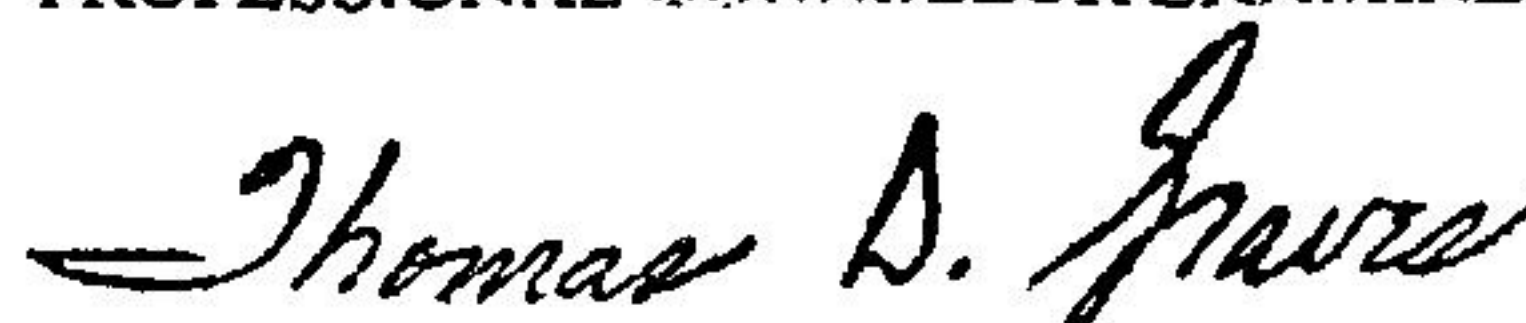
17. This Stipulation and Order is a public record.


JESS L. RHODES, MA, LPC
Respondent

DATED: 4/8/02

ACCEPTED, SIGNED, AND ORDERED this 16th day of April, 2002.

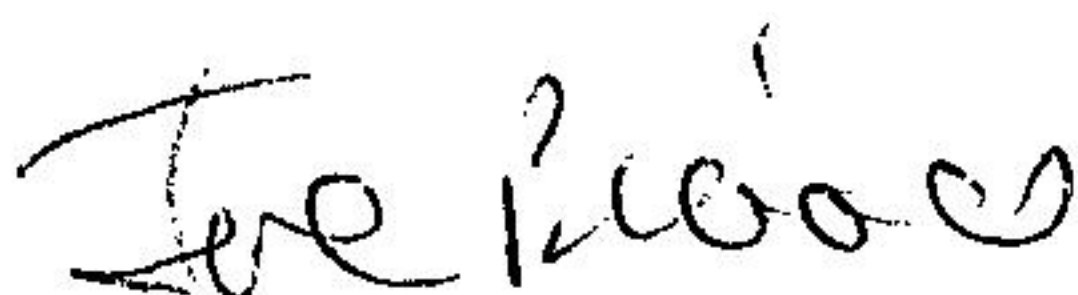
COLORADO STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



THOMAS GRAVES, LPC
Board Chair

APPROVED AS TO FORM

FOR THE RESPONDENT



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